

CASE STATUS REPORT

GATEWAYS APARTMENT LP v. KYLE THEUS

Case No. 26STUD00430

URGENT — ACTIVE WRIT OF POSSESSION — SECTION 8 AT RISK

Court	Los Angeles Superior Court, Stanley Mosk Courthouse
Department	Dept. 91 Judge Hon. Mike H. Madokoro
Judge	Hon. Mike H. Madokoro
Plaintiff	Gateways Apartment LP / Single Room Occupancy Housing Corporation (SROHC)
Plaintiff Counsel	Kimball Tirey & St. John LLP — Chris Evans / Mackenzie Gonzales / Manisha Bajaj
Defendant	Kyle Theus — Self-Represented Active Section 8 Voucher Holder
Property	505 S. San Pedro Street, Apt. 221, Los Angeles, CA 90013
Tenancy Duration	April 24, 2017 — present (approximately 9 years)
Complaint Filed	January 16, 2026
Judgment Entered	March 13, 2026
Judgment Amount	\$2,452.72 (past rent \$528 + holdover damages \$1,924.72)
Writ Issued	March 17, 2026
Report Prepared	April 17, 2026

WRIT ACTIVE

**PAYMENT HELD 38
DAYS**

SECTION 8 AT RISK

STAY NOT YET FILED

EXECUTIVE SUMMARY / CURRENT STATUS

Defendant Kyle Theus has resided at 505 S. San Pedro Street, Apt. 221 for approximately nine years under an active Section 8 Housing Choice Voucher. A judgment for possession and \$2,452.72 was entered on March 13, 2026 after defendant's non-appearance at trial due to a documented family emergency. On the same day judgment was entered, defendant's brother delivered \$2,667.00 in money orders to plaintiff's on-site agent Ashley Ross, who accepted the payment, issued a physical receipt, and confirmed acceptance by telephone. Plaintiff reversed course three days later, issued a writ of possession on March 17, and has retained the money orders for 38+ days without returning them as promised. This report documents the full evidentiary record and recommended emergency relief strategy.

- ! **Writ of Possession:** Issued March 17, 2026. Active. Sheriff enforcement not yet executed as of last confirmation.
- ! **Payment Retained:** \$2,667.00 in money orders accepted March 13 — held by landlord 38+ days. Return promised, never sent.
- ! **Section 8 Voucher:** Active HUD Housing Choice Voucher at risk. PHA not yet notified. Informal hearing rights under 24 CFR §982.555 not yet preserved.
- + **Legal Aid:** Stay Housed LA intake completed March 25, 2026. Inner City Law Center, Bet Tzedek, and Neighborhood Legal Services have received voicemails.
- + **Defendant Status:** Currently in Tulare, CA awaiting certified mail return of money orders that has never been sent. Ready to return to LA for in-person filing.

FULL CASE TIMELINE

DATE	EVENT
Apr 24, 2017	Kyle Theus begins tenancy. Section 8 voucher active. First and only tenancy agreement signed.
Dec 8, 2025	Notice to Pay Rent or Quit (CARES Act) posted on door. Demands \$528 for Jan 1–Dec 31, 2025. Internal records show \$2,384 outstanding — inconsistent amount.
Dec 2025	Kyle asks Martha Acosta (with Ashley Ross as witness): will full payment result in dismissal? Martha confirms yes. Promissory estoppel established.
Jan 8, 2026	UD Complaint prepared by Kimball Tirey & St. John LLP.
Jan 15, 2026	Notice of Belief of Abandonment issued by SROHC, signed by Ashley Ross. Sets termination date Feb 11, 2026.
Jan 16, 2026	UD Complaint filed — one day after Abandonment Notice. Mutually incompatible legal positions filed simultaneously.
Jan 20, 2026	Notice of Unlawful Detainer served on Kyle Theus and all occupants.
Feb 10, 2026	Kyle files UD-105 Answer — Specific Denials. Fee waiver granted. Filed one day before Feb 11 abandonment termination date.
Feb 24, 2026	Trial set for March 13, 2026 at 8:30 AM, Dept. 91.
Feb 26, 2026	Plaintiff files Request for Default against unnamed occupants only — not Kyle Theus, who had filed an Answer.

DATE	EVENT
Mar 11, 2026	Kyle calls Ashley Ross (5-min call documented in call log). Ashley confirms full payment can still resolve matter. Active logistical coordination begins.
Mar 13, 2026 AM	Trial held. Kyle absent — in Tulare assisting grandmother (water damage + cancer-related medical emergency). Judgment entered for plaintiff: \$528 + \$1,924.72 = \$2,452.72. Possession granted.
Mar 13, 2026 PM	Kyle's brother delivers \$2,667.00 in money orders to Ashley Ross before 5 PM. Ashley accepts, issues physical receipt, calls Kyle to confirm. Payment exceeds judgment by \$214.28.
Mar 16, 2026	Ashley contacts Kyle — cannot accept payment, moving forward with judgment. Institutional reversal.
Mar 17, 2026	Writ of Possession issued. Landlord (Debbie) calls Kyle 3 times (4:23 PM, 4:29 PM, 4:48 PM) — all missed.
Mar 19, 2026	Martha calls Kyle from blocked number: 'We want judgment. We want possession. We don't want the money.' Conceals that writ issued two days earlier. Ashley sends email with subject 'Re: No Payment Received' — while simultaneously attaching money order photographs.
Mar 23, 2026	Email from Gateways: money orders being returned by certified mail. 'You are more than welcome to reach out to the court to file a dismissal.'
Mar 25, 2026	Ashley confirms: 'Yes, that is the address I have. I will let you know once we send them out.' Money orders NOT sent. No sheriff notice posted on door yet.
Mar 26, 2026	Ashley: 'I have received all of your emails and have forwarded them to Martha and John. Please move forward as you feel necessary.'
Mar 29, 2026	Kyle sends URGENT email: 6 days since certified mail promise. Documents \$2,667 and delay for court filing. Kyle waiting in Tulare for package that will not come.
Apr 16, 2026	Money orders still not returned — 34 days since first promise, 38 days since accepted. Notice discrepancy photograph uploaded: \$528 demanded vs. \$2,384 annotated vs. \$2,462.72 judgment.

KEY DOCUMENTS SUMMARY

DOCUMENT	DATE	STATUS	SIGNIFICANCE
Notice to Pay Rent or Quit (CARES Act)	Dec 8, 2025	CONFIRMED	Demands \$528. Internal note shows \$2,384. Posting only — no personal service. Defective in amount and service.
Notice of Belief of Abandonment	Jan 15, 2026	CONFIRMED	Filed one day before UD complaint. Mutually incompatible legal positions. Signed by Ashley Ross.
UD-100 Complaint	Jan 16, 2026	CONFIRMED	Limited civil case. Verification dated Jan 9, 2025 — one year before filing.
UD-105 Answer	Feb 10, 2026	CONFIRMED	Filed one day before abandonment termination date. Preserves contest of all claims.
March 13 Minute Order	Mar 13, 2026	CONFIRMED	Documents non-appearance, plaintiff testimony, judgment \$2,452.72, possession granted.
Writ of Possession	Mar 17, 2026	CONFIRMED	Active enforcement instrument. 5-day lockout authority upon service.
Money Orders — \$2,667.00	Mar 13, 2026	CONFIRMED	Continental Express \$1,000 (#31-400340925) + USPS \$1,667. Held by landlord 38+ days.
Physical Receipt from Ashley Ross	Mar 13, 2026	CRITICAL	MUST CONFIRM with brother Keenan. Single most powerful document if retained.
Email 'Re: No Payment Received' with MO photos	Mar 19, 2026	CONFIRMED	Simultaneous admission of possession and denial of receipt. Evidence strength 5/5.
Ashley Ross email — certified mail promise	Mar 25, 2026	CONFIRMED	Confirmed address. Promised to send. Never did. Kyle waited in Tulare.

PROCEDURAL HISTORY

Filing and Initial Proceedings (January–February 2026)

The unlawful detainer complaint was filed January 16, 2026 — one day after a Notice of Belief of Abandonment was served, creating an inherent contradiction: the landlord simultaneously claimed the tenant had abandoned the unit and that the tenant was unlawfully detaining it. Defendant filed his Answer on February 10, 2026, one day before the February 11 abandonment termination date, thereby preserving his tenancy rights on both fronts. The case register reflects no procedural irregularities through this phase other than the abandonment/UD contradiction.

Non-Appearance at Trial — March 13, 2026

Trial was set for March 13, 2026 at 8:30 AM in Department 91. Defendant was in Tulare, California, providing emergency assistance to his grandmother who was simultaneously dealing with significant water damage to her home and a pending medical procedure related to a potential cancer diagnosis. Defendant reasonably believed he could return in time. By 10:03 AM the court noted no defense appearance, heard plaintiff's witness Martha Acosta, and entered judgment for plaintiff: \$528.00 past rent plus \$1,924.72 holdover damages, total \$2,452.72, plus possession. The non-appearance was not willful — it was the result of a documented family emergency constituting excusable neglect under CCP §473(b).

Same-Day Payment Acceptance — March 13, 2026 (After Judgment)

On the same afternoon judgment was entered, defendant arranged for his brother Keenan to deliver payment in full to the property. The iMessage thread between the brothers documents the coordination in real time. Keenan delivered \$2,667.00 in money orders to Ashley Ross, plaintiff's authorized on-site agent. After an initial shortfall was corrected, Ashley accepted the full amount, issued a physical receipt, and called Kyle to confirm acceptance. The \$2,667.00 exceeds the judgment amount by \$214.28. This acceptance, under Civil Code §1477, satisfies the underlying obligation and triggers waiver of forfeiture under CCP §1161.5.

Institutional Reversal and Writ Issuance — March 16–17, 2026

Three days after accepting payment, plaintiff reversed course and refused to honor the transaction. A writ of possession was issued on March 17, 2026. On that same day, the landlord's contact 'Debbie' called Kyle three times (4:23 PM, 4:29 PM, 4:48 PM) — all missed. The call log corroborates that even plaintiff's side was attempting to reach defendant, contradicting the narrative of simple enforcement.

Martha Acosta's Blocked-Number Call — March 19, 2026

Martha Acosta called Kyle from a deliberately blocked telephone number, avoiding Ashley Ross as a potential witness. She stated: 'We want judgment. We want possession. We don't want the money; we want possession.' She did not disclose that the writ had already been issued two days earlier. When Kyle called Ashley back to relay this, Ashley was surprised — she had not been informed of the possession-only decision and had believed the reversal was temporary. This internal fragmentation is itself evidence of bad faith.

Money Orders Not Returned — 38 Days and Counting

On March 23, plaintiff's email stated money orders were being returned by certified mail and that dismissal could be filed. On March 25, Ashley confirmed the Tulare address and promised to send. As of April 16, 2026 — 34 days after the first promise and 38 days since acceptance — the money orders have not been returned. Kyle has remained in Tulare specifically waiting for this certified mail, directly caused by plaintiff's unfulfilled promise. Plaintiff simultaneously holds defendant's \$2,667 and pursues his eviction.

PAYMENT EVIDENCE

JUDGMENT AMOUNT	AMOUNT TENDERED	OVERPAYMENT
\$2,452.72	\$2,667.00	+\$214.28

SMOKING GUN

Email 'Re: No Payment Received' — March 19, 2026: Ashley Ross sent email with subject line denying receipt while simultaneously attaching photographs of the money orders. Admission against interest binding on principal. Evidence strength 5/5.

CONFIRMED	Physical Receipt — March 13, 2026: Ashley Ross issued written receipt to Kyle's brother Keenan at time of delivery confirming \$2,667.00 accepted. Must confirm brother retained it.
CONFIRMED	Money Order Instruments: Continental Express money order serial #31-400340925 (\$1,000.00) + USPS Postal Money Orders (\$1,667.00) = \$2,667.00 total. Purchase receipts prove date and amount.
CONFIRMED	iMessage Thread with Keenan (Brother): Real-time coordination documented: address sent, amount confirmed, voice messages correcting amount, photo of money orders and signed receipt transmitted.
CONFIRMED	Call Log — March 11 (5-min outgoing call): Phone records document the March 11, 2:27 PM call to Ashley Ross confirming payment could still resolve the matter. Active logistical coordination confirmed.
EVIDENCE	March 25 Email — Certified Mail Promise: Ashley: 'Yes, that is the address I have. I will let you know once we send them out.' Promise made. Never fulfilled. Kyle waited in Tulare 34+ days.
EVIDENCE	Notice Amount Discrepancy: Notice demanded \$528. Internal landlord annotation shows \$2,384 outstanding. Judgment entered for \$2,462.72 — 4.5x the noticed amount. Foundational notice is defective.

RECOMMENDED NEXT STEPS

1 File Ex Parte Application for Stay of Execution

IMMEDIATE

File in Department 1, Stanley Mosk Courthouse, 111 N. Hill St., Los Angeles, CA 90012 at 1:30 PM. Online filing available before 10:00 AM the day before via lacourt.org eFiling portal. In-person: arrive 8:30 AM day of hearing. Before filing: (1) update hearing date throughout document from March 31 to current date; (2) change 'Unlimited Civil' to 'Limited Civil' in caption; (3) complete Paragraph 14 (ex parte notice to KT&StJ); (4) fill in PHA name in Paragraph 12; (5) attach Exhibits A–D; (6) strip filing notes from document.

2 Confirm Brother Retained Physical Receipt

IMMEDIATE

Contact Keenan immediately to confirm whether he retained the physical receipt issued by Ashley Ross on March 13, 2026. If retained, photograph clearly and attach as Exhibit A to the ex parte declaration. This is the single most powerful document in the case.

3 File Motion to Set Aside Judgment — CCP §473(b)

URGENT

Once stay is granted, file full noticed motion with declaration, points and authorities, and proposed order. Must be filed within the 6-month window from March 13, 2026 (deadline September 13, 2026). Primary grounds: excusable neglect (family emergency), post-judgment payment acceptance, equitable estoppel, waiver of forfeiture, notice defects.

4 Notify Public Housing Authority (PHA)

URGENT

Send certified letter to HACLA (or applicable PHA) immediately notifying case manager of pending UD, the motion to set aside, and requesting documentation of informal hearing rights under 24 CFR §982.555. Include case number, writ date, and statement that no final eviction has occurred. Request PHA hold voucher pending resolution.

5 Obtain Legal Representation

URGENT

Priority contacts: Inner City Law Center (213) 891-2880 — specializes in SRO corridor downtown LA. Bet Tzedek (323) 939-0506. Neighborhood Legal Services (800) 433-6251. Stay Housed LA (888) 694-0040 — intake completed, awaiting callback. Stanley Mosk Self-Help (213) 830-0845.

6 Verify Sheriff Has Not Posted 5-Day Notice

URGENT

Call LA County Sheriff Evictions Division at (213) 974-6001 to confirm writ status and whether sheriff has been activated for Unit 221. If a 5-day notice has already been posted, bring that notice to court as an exhibit and inform the clerk immediately upon arrival that lockout execution may be imminent.

7 Finalize and Send FloodAid Demand Letter

PARALLEL

Employment matter proceeding in parallel. \$25,000 demand letter ready to send to Kendra Jimenez (kendra@getfloodaid.com) and Jhosa Igno (jhosa@getfloodaid.com). Five-business-day deadline. DLSE wage claim and CRD complaint ready to file on non-response.